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File No.: EXP202300842

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the claimant), on May 20, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against Mr. B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The claimant reports the use of a video recorded during a training session in which she makes personal statements, which were used without her consent by the respondent, as a testimonial for the purpose of attracting new clients.

The client acquisition strategy is carried out through a challenge lasting five days in which videos are shown and a live session is held.

Throughout the challenge, the video is published on Facebook, as well as on these two websites:

***URL.1

***URL.2

She indicates that both websites have a section with testimonials from former students, including hers, along with her first and last name, and that she never gave permission for that video to be published nor did anyone ask her for it.

She is aware that three challenges have been conducted that year, which usually attract about 2,000 participants per challenge, so the reach of dissemination would be at least around 6,000 people.

The dates have been:

Challenge 1: week of March 21 to 25

Challenge 2: week of April 18 to 22

Challenge 3: week of May 9 to 13

She states that on May 14, 2022, she became aware of the facts she is now complaining about when one of these pages appeared as an advertisement on Facebook. On the same day, she contacted the respondent, who canceled the website:

***URL.1

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The next day, she found another one where the same video appeared:

***URL.2

She does not know the exact date of its publication but suspects it has been published for some time, as through old messages on Facebook Messenger, some friends were asking her if it was her appearing in the video.

The links from Facebook Messenger are:

***URL.3

***URL.4

***URL.5

She does not know the content of the video because it is no longer available.

She states that at this moment those two pages are canceled, but she is unaware of how many other places her video may have been published as a claim to attract new clients and that it is not only what has been published without her consent, but whether in the future they could continue using her image.

Along with the complaint, she provides a copy of the video with her testimony, as well as screenshots that would prove the publication, associated with her name, first surname, and place of residence.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data

Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was "Returned to sender due to Unknown," on July 22, 2022, with the forwarding being reiterated on July 26, 2022.

This notification was addressed to the postal address of the respondent, being returned after two delivery attempts on August 4 and 5, 2022, by the Postal Service, with the annotation "Returned to sender due to Surplus" for not being collected at the office, according to the proof of delivery attempt that is in the file.

No response has been received to this forwarding letter.

THIRD: On August 20, 2022, in accordance with Article 65 of the LOPDGDD, the admission for processing of the complaint filed by the claimant is communicated.

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FOURTH: On May 24, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent party for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

The initiation agreement was sent, in accordance with the rules established in the LPACAP, by postal notification, which was returned to the sender as unknown on June 5, 2023, as stated in the certificate included in the file, proceeding to its publication in the Official State Gazette on June 9, 2023, in accordance with the provisions of Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.

FIFTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent party.

Article 64.2.f) of the LPACAP - a provision of which the respondent party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In the present case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent party has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

PROVEN FACTS

FIRST: It is recorded that on May 20, 2022, the complainant submitted a complaint to the Spanish Agency for Data Protection, since the respondent party used for promotional purposes a video in which the image, voice, name, first surname, and place of residence of the complainant appeared, along with their testimony, recorded during a training course they attended, without having obtained their consent.

SECOND: Upon reviewing the documentation provided and incorporated into the file, a copy of the video with their testimony is included, as well as a screenshot that proves its publication, associated with their name, first surname, and place of residence, on the following website:

***URL.2

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

The alleged facts materialize in the use of a video, in which the image, voice, name, first surname, and place of residence of the complainant appear, recorded during a training course they attended and which was used by the respondent party along with their testimony for promotional purposes, without having obtained their consent, which could constitute a violation of the regulations on the protection of personal data.

It is, therefore, pertinent to analyze whether the processing of personal data (image, voice, name, first surname, and place of residence of individuals) carried out through the filming of a video and its downloading on social networks is in accordance with the provisions of the GDPR.

The physical image and voice of a person, according to Article 4.1 of the GDPR, are personal data and their protection, therefore, is subject to this Regulation, understanding personal data as: "any information relating to an identified or identifiable natural person."

An identifiable natural person is considered to be one whose identity can be determined, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that person.

In the specific case being examined, the published image and voice along with the name, first surname, and place of residence of the person to whom it has been attributed constitute a set of personal data within the meaning of Article 4.1 of the GDPR.

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GDPR, and therefore, data related to an identified or identifiable natural person.

It should also be understood that processing means "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment or combination, restriction, erasure or destruction."

The recording of a person's physical image and voice and its subsequent publication, along with their name, first surname, and place of residence, on social media for commercial purposes, constitutes processing of personal data and, therefore, the data controller carrying out such processing is obliged to comply with the obligations set forth for data controllers in the GDPR and in the LOPDGDD.

The General Data Protection Regulation, in its Article 4.11, defines the consent of the data subject as "any freely given, specific, informed and unambiguous indication of the data subject's wishes, by which they signify agreement, either by a statement or by a clear affirmative action, to the processing of

personal data relating to them."

In this regard, Article 6.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights, establishes that "in accordance with the provisions of Article 4.11 of Regulation (EU) 2016/679, consent of the affected party is understood as any freely given, specific, informed and unambiguous indication of the affected party's wishes, by which they signify agreement, either by a statement or by a clear affirmative action, to the processing of personal data relating to them."

From the facts presented, given that the responding party has not demonstrated the legality of the processing of the claimant's data nor their consent for such processing, an infringement of the data protection regulations is inferred.

III

Unfulfilled Obligation. Legality of Processing

The GDPR requires that the processing of personal data be lawful (Article 5.1.a), a principle that is developed in Article 6, the first paragraph of which states that processing shall only be lawful if at least one of the circumstances listed applies.

Thus, Article 6 of the GDPR under the heading "Legality of Processing" specifies in its paragraph 1 the cases in which the processing of third-party data is considered lawful:

"1. Processing shall be lawful only if it meets at least one of the following conditions:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person.
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, particularly when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

On this issue of the legality of processing, Recital 40 of the aforementioned GDPR also emphasizes that "for processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation refers, including the necessity of complying with a legal obligation applicable to the data controller or the necessity of executing a contract to which the data subject is a party or for the purpose of taking steps at the request of the data subject prior to entering into a contract."

It should be noted that the processing of data requires the existence of a legal basis that legitimizes it. In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, particularly when it is necessary for the performance of a contract to which the affected party is a party or for the implementation, at the request of the affected party, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the affected party which require the protection of such data.

Processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect the vital interests of the affected party or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of official

authority vested in the data controller.

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In the present case, there is no evidence of any cause that legitimizes the processing of data carried out by the claiming party.

Consequently, it is considered that the established facts constitute an infringement, attributable to the claimed party, for violation of Article 6.1 of the GDPR.

IV

Classification of the infringement of Article 6.1 of the GDPR

The aforementioned infringement of Article 6.1 of the GDPR constitutes one of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements," establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a three-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679."

V

Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is effective, proportionate, and dissuasive in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and

mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

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b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

According to the transcribed provisions, for the purpose of determining the amount of the sanction for infringement of Article 6.1 of the GDPR, it is appropriate to adjust the fine taking into account:

As aggravating factors:

Article 83.2.b) of the GDPR: "the intentionality or negligence in the infringement"; because the intentionality in the unauthorized processing is clear, as the claimed party has consciously and deliberately published the data of the claiming party, making it accessible to anyone who accesses the website.

Considering the factors presented, the assessment of the amount of the fine is €10,000 for the infringement of Article 6.1 of the aforementioned GDPR.

VI

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is noted that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR, a fine of €10,000 (ten thousand euros).

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 1 month, prove that it has proceeded to remove the video in question from all platforms where it may appear.

FOURTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. In the event of non-compliance, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the

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Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact through a written document addressed to the Spanish Agency for Data Protection, submitting it via the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries

provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. The interested party must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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